



1900 NW 97TH AVENUE
DORAL, FL 33172
T: 305.805.6797
F: 305.805.6798
WWW.ACB-US.COM

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 17-04

REGULATORY REFORM INITIATIVE

COMMENTS OF GABRIEL RODRIGUEZ

I am Gabriel Rodriguez, President of A Customs Brokerage, Inc. (ACB). ACB is an NVOCC, License 017899, and operates one office in Doral, FL. ACB has adopted filing NRA's in many of our shipment transactions. This option has allowed us to save a significant amount of resources and allowed us to more efficiently process our shipments. We would like to thank the FMC for having provided the relief of rate tariff filing using the NRA provisions however our preference would be to eliminate the need for rate tariff filing altogether. The filing of rates is a redundant effort that is futile considering these rates are not monitored or viewed. In 15 years as an NVOCC we have not once had any client or other industry partner request the viewing of our rules or rate tariff. The only entities that benefit from tariff filing are those 3rd party filing companies that impose high fees for these unviewed records. The filing of a commercially agreed upon rate between a client and an NVOCC is an ineffective and out dated practice and we request the FMC to update and reform their regulations to fall in line with modern day practices.



1900 NW 97TH AVENUE
DORAL, FL 33172
T: 305.805.6797
F: 305.805.6798
WWW.ACB-US.COM

If the Commission will not accept to reform these regulations, we implore the consideration to adopt the commentary and considerations outlined by the NCBFAA which has repeatedly asked that the FMC end the current limitations on what can be in an NRA. These comments outline that an NRA does not include a series of provisions such as credit terms, volumes and can essentially only provide basic rates. In today's quick moving commercial world, an NRA requires the flexibility of today's marketplace to be able to amend NRA's and be considered effective from the confirmation of booking.

As members of the NCBFAA we fully support the Association's continued efforts to eliminate burdensome and unnecessary regulations. As noted above, the publishing of rates serves no commercial or compliance purposes. They are a costly task that consume time and effort, and burden the industry with a futile task. We accordingly urge the FMC to exercise its authority to totally exempt NVOCCs from having to publish rate tariffs or at least to eliminate (1) the restrictions on the use of NRAs and (2) the need to file NSAs.

DATED: July 5, 2017

Gabriel Rodriguez